Terms of Service

Last updated: 18 October 2026
Effective date: 18 October 2026

These Terms of Service ("**Terms**") govern your access to and use of the SmartMoney mobile application and related services (together, the "**App**" or "**Service**"), operated by SmartMoney (registered trade name: SMART MONEY), a sole proprietorship owned by Rupankar De, registered under Gram Panchayat Trade Registration No. 528, issued on 1 September 2026 (valid 2026–2029). SmartMoney is not currently incorporated as a separate company or LLP and has no CIN. In these Terms, "**SmartMoney**", "**we**", "**us**", and "**our**" refer to this business; "**you**" and "**your**" refer to the person using the App.

By creating an account or otherwise using the App, you agree to be bound by these Terms and by our Privacy Policy, which is incorporated into these Terms by reference. If you do not agree, please do not use the App.

You must read these Terms alongside the Privacy Policy, which explains what information we collect and how we use it. Where this document and the Privacy Policy address the same topic (for example, account deletion with an unpaid balance), both documents are written to agree with each other; if you notice a conflict, tell us so we can fix it.

---

1. Introduction and Acceptance

These Terms govern your access to and use of the SmartMoney App, operated by SmartMoney, a sole proprietorship owned by Rupankar De (see the introduction above for the full registration details). By creating an account or otherwise using the App, you agree to be bound by these Terms and by our Privacy Policy, which is incorporated into these Terms by reference and is written to agree with these Terms wherever the two address the same topic.

2. Eligibility

You must be **18 years of age or older** to create an account or use the App, consistent with our handling of financial and cashback wallet data. By using the App, you represent that you meet this requirement and that you are legally capable of entering into a binding contract under applicable Indian law. The Service is intended for use within India. When you register, you confirm that you are 18 or over and accept these Terms and the Privacy Policy by ticking the confirmation boxes, and we record that confirmation with the version of the documents, the date and time, and your IP address.

3. The SmartMoney Service

SmartMoney is an **affiliate cashback platform**. Through the App, you can:

- Browse participating stores and offers.
- Click through an affiliate link to a merchant's website to make a purchase.
- Earn **cashback** — a share of the commission SmartMoney earns from the merchant or affiliate network for referring your purchase — once that purchase is confirmed and validated.

SmartMoney is not a merchant, retailer, or seller of the products or services you purchase through an affiliate link. We do not process your payment to the merchant, fulfil your order, or handle returns, refunds, warranties, or customer service for merchant purchases. Those are solely between you and the merchant (see Section 9).

4. Account Registration and Security

To use most features of the App, you must create an account using your email address and a password. You agree to:

- Provide accurate, current, and complete information when registering, including your full name, email address, and mobile number.
- Keep your login credentials confidential and never share your password with anyone.
- Notify us immediately at the contact details in Section 21 if you suspect unauthorized access to your account.
- Accept responsibility for all activity under your account, except where that activity results from our own failure to secure the Service.

Your mobile number is collected as contact information only; SmartMoney does not currently verify it. Account verification is performed through your email address, as described in the Privacy Policy.

We may suspend or terminate your account under the circumstances described in Section 12.

5. How Cashback Works

Cashback is a share of commission, not a fixed reward. The percentage of a purchase's commission credited to you as cashback, and the typical window before a pending cashback is expected to be confirmed, are determined by SmartMoney's cashback settings. These settings can vary by affiliate network, by merchant, and by product category, and SmartMoney may change them at any time, including for purchases already in progress, without that being a breach of these Terms.

Each cashback entry moves through the following states, which the App shows you:

- **Pending** — your click and purchase have been recorded, but the merchant or affiliate network has not yet confirmed the transaction.
- **Awaiting Admin Review** — the transaction needs manual review before it can be confirmed.
- **Confirmed** — the cashback is credited to your wallet's available balance.
- **Rejected** — the transaction did not qualify for cashback (for example, it was outside the terms of the offer, or the affiliate network declined it).
- **Paid Out** — the confirmed cashback has been withdrawn from your wallet.
- **Reversed** — cashback that was previously confirmed has been reversed, most commonly because the underlying purchase was cancelled, returned, or refunded by the merchant after confirmation.

Cashback is never guaranteed, even when you click through correctly and complete a purchase, because confirmation depends on the merchant and the affiliate network, not on SmartMoney alone. Cashback may be delayed, reduced, rejected, or reversed for reasons including but not limited to:

- The merchant or affiliate network failing to report or confirm the transaction to us.
- Tracking failure caused by browser settings, ad blockers, extensions, cleared cookies, or using another coupon/cashback source in the same purchase session.
- The purchase being cancelled, returned, exchanged, or refunded, in whole or in part.
- The purchase falling outside the specific terms of the offer you clicked (for example, excluded categories or products).
- A violation of these Terms, the merchant's own terms, or the affiliate network's terms.

If a tracking identifier or cookie set by your click is blocked, cleared, or otherwise disabled before you complete your purchase, SmartMoney may be unable to attribute that purchase to you, and you may not receive cashback for it. We encourage you to complete your purchase in the same browsing session you clicked through from, without navigating away to other cashback or coupon sites first.

If cashback is reversed while it is still sitting in your wallet as an available balance, we will deduct the reversed amount from that balance. **If the corresponding amount has already been withdrawn**, your wallet balance is not adjusted for it automatically; instead, we will contact you directly to resolve it, which may include a request for repayment. We will always tell you when a reversal is being applied to your account and why.

6. Your Wallet

Your SmartMoney wallet is an **internal ledger** that reflects cashback credited to your account — it shows your available balance, pending balance, total cashback earned, and total amount withdrawn. The wallet balance is **not** a deposit, a stored-value instrument, or money held by SmartMoney on your behalf in the way a bank account or prepaid payment instrument would be; it is a running record of cashback owed to you under these Terms, which becomes payable to you through a withdrawal as described in Section 8.

7. Offers, Content, and Service Availability

Offer details, cashback rates, store listings, and promotional content shown in the App are provided for informational purposes and may change or be withdrawn by SmartMoney or the relevant merchant or affiliate network at any time, including after you have clicked through but before you complete your purchase. SmartMoney does not guarantee the accuracy, availability, or continued validity of any offer, price, or cashback rate shown in the App.

More broadly, SmartMoney may **modify, suspend, or discontinue** the App, or any feature, functionality, or part of the Service, at any time, with or without notice, including its availability in your region. We will try to give reasonable notice before a change that materially affects your ability to use the App or to withdraw a confirmed balance, but this is not always possible (for example, where a third-party provider we depend on changes or withdraws its own service). This Section does not override Section 13, which governs what happens to your account and wallet balance if you choose to close your account, or Section 12, which governs suspension or termination of your account for a violation of these Terms.

8. Withdrawals

Once your SmartMoney wallet has a confirmed, available balance, you may request a withdrawal. When SmartMoney's withdrawal feature is live:

- Withdrawals are currently paid **manually** by SmartMoney, from its own bank account, to a UPI ID or bank account you provide. This is used solely to pay cashback out to you; it is never used to collect any payment from you.

- We will collect the payout details necessary for your chosen method (UPI ID, or bank account number and IFSC code).
- A minimum withdrawal amount of **₹250** applies: you can request a withdrawal only once your available balance is at least ₹250.
- We may delay, request additional verification for, or decline a withdrawal where we reasonably suspect fraud, a violation of these Terms, or where required by law.
- Any tax, reporting, or withholding obligations that apply to cashback or withdrawals under Indian law are your responsibility as the recipient, except to the extent SmartMoney is itself legally required to withhold or report, as required by applicable law.

9. Affiliate Links and Third-Party Merchants

When you click an offer or store listing in the App, you are redirected to a **third-party merchant's website** to complete your purchase. Once you leave the App:

- Your purchase, and your relationship for that purchase, is solely between you and the merchant. The merchant's own terms of service, privacy policy, pricing, delivery terms, return policy, and customer support apply, not these Terms.
- SmartMoney does not control, endorse, or take responsibility for the merchant's products, services, pricing, content, security practices, or conduct.
- Any dispute about your order — including non-delivery, product quality, refunds, or billing — must be raised directly with the merchant. SmartMoney is not a party to that transaction and cannot resolve it on your behalf, though we may assist in good faith where a dispute affects your cashback eligibility.

We encourage you to review a merchant's own policies before completing a purchase.

10. Prohibited Conduct

You agree not to, and not to attempt to:

- Create multiple accounts for yourself, or create an account using another person's identity or information without authorization.
- Use bots, scripts, automated tools, or any method other than genuine personal browsing to generate clicks, purchases, or cashback.
- Engage in click fraud, cookie stuffing, or any practice designed to misattribute a purchase to your account, or to interfere with another user's attribution.

- Circumvent, disable, or interfere with the affiliate tracking mechanisms the App relies on to calculate cashback.
- Use the App in a way that violates a merchant's or an affiliate network's own terms of service.
- Attempt to gain unauthorized access to any part of the App, other users' accounts, or SmartMoney's systems.
- Use the App for any unlawful purpose, or in a way that could damage, disable, or impair SmartMoney's Service.

Violating this Section is grounds for cashback rejection or reversal, and for account suspension or termination under Section 12.

11. Intellectual Property

The App, including its design, logos, trademarks (including “SmartMoney” and “SMART MONEY”), text, graphics, and underlying software, is owned by or licensed to SmartMoney and is protected by applicable intellectual property laws. You may use the App only for its intended personal purpose, and you may not copy, modify, distribute, reverse-engineer, or create derivative works from the App except as expressly permitted by law.

12. Suspension, Termination, and Cashback Forfeiture

We may suspend or terminate your account, with or without notice, if we reasonably believe you have:

- Violated these Terms, the Privacy Policy, or any applicable law.
- Engaged in fraud, click fraud, cookie stuffing, or abuse of the cashback or affiliate system.
- Provided false, inaccurate, or misleading information when registering or using the App.
- Created risk of harm to SmartMoney, other users, our merchants, or our affiliate network partners.

On suspension or termination for a violation of these Terms, any pending or unconfirmed cashback associated with the violation may be forfeited. This is separate from account deletion at your own request, which is described in Section 13; termination under this Section is initiated by SmartMoney, not by you.

13. Account Closure and Deletion

You can delete your account at any time in the App, by opening your profile, choosing Delete account, and confirming your password, or by sending a deletion request by email from the address registered on

your account, using the details in Section 21, as described in our Privacy Policy. Before we can process a deletion request:

- **Money in your wallet:** you cannot delete your account **in the App** while there is money in your wallet, meaning any confirmed (available) cashback, or an amount held for a withdrawal that is still in progress. Withdraw it first, then delete your account. If you instead **ask us by email** to delete your account while there is money in your wallet, we will delete it, but **the money in your wallet is forfeited and is not refundable**. Before we do, we will tell you the amount and ask you to confirm. A withdrawal that is already in progress is completed or cancelled first.
- Any **pending (unconfirmed) cashback** tied to an in-progress merchant transaction may be resolved or forfeited, since it cannot be verified once your account is closed.

See Section 12 of the Privacy Policy for how your personal data is handled after deletion.

14. Third-Party Services

The App relies on the following third parties to operate:

- **Affiliate network partner(s)**, currently including Cuelinks, to generate affiliate links, route your clicks to merchants, and attribute purchases for cashback calculation.
- **Microsoft Azure**, to host the App's backend and store your account, transaction, and uploaded data.
- **Brevo**, our email delivery provider, to send you verification codes (OTP), password resets, and other account emails.
- **Our bank and the UPI and bank-transfer payment networks**, to deliver withdrawal payouts to you.

Your use of these third-party services through the App may also be subject to that provider's own terms. See our Privacy Policy for how data is shared with each of them.

15. Disclaimers

The App and the Service are provided on an “**as is**” and “**as available**” basis. To the fullest extent permitted by applicable law, SmartMoney makes no warranty that:

- The App will be uninterrupted, error-free, or secure at all times.
- Any specific offer, cashback rate, or cashback amount will be available, accurate, or honored by the relevant merchant or affiliate network.
- Any pending cashback will ultimately be confirmed.

Nothing in this Section limits any right or protection you have under applicable Indian consumer protection law that cannot lawfully be excluded.

16. Limitation of Liability

To the fullest extent permitted by applicable law, SmartMoney's total liability to you arising out of or relating to these Terms or your use of the App is limited to the confirmed, unpaid cashback balance in your wallet at the time the claim arises. SmartMoney is not liable for indirect, incidental, special, or consequential damages, including loss of profits or data, arising from your use of the App, a merchant's website, or any third-party service referenced in these Terms, except where such liability cannot lawfully be excluded under applicable Indian law.

17. Indemnification

You agree to indemnify and hold SmartMoney and Rupankar De harmless from any claim, loss, liability, or expense (including reasonable legal fees) arising from your violation of these Terms, your violation of applicable law, or your misuse of the App, except to the extent caused by SmartMoney's own breach of these Terms.

18. Governing Law and Dispute Resolution

These Terms are governed by the laws of India. Any dispute arising under these Terms shall be subject to the exclusive jurisdiction of the courts of **Kolkata, West Bengal**.

If you have a complaint or grievance about the Service, please first contact our Grievance Officer using the details in Section 21 or in our Privacy Policy, so we have an opportunity to resolve it directly.

19. Changes to These Terms

We may update these Terms from time to time to reflect changes in our practices, features, or legal requirements. When we make a material change, we will update the “Last updated” date above and, where appropriate, notify you through the App or by email. Your continued use of the App after a change takes effect constitutes your acceptance of the updated Terms. If you do not agree to an updated version, you should stop using the App and may request account deletion as described in Section 13.

20. Miscellaneous

Severability. If any provision of these Terms is found unenforceable, the remaining provisions remain in full effect.

Entire agreement. These Terms, together with the Privacy Policy, constitute the entire agreement between you and SmartMoney regarding the App, superseding any prior agreements on the same subject.

No waiver. SmartMoney's failure to enforce any provision of these Terms is not a waiver of its right to do so later.

Assignment. You may not assign or transfer your rights under these Terms. SmartMoney may assign these Terms in connection with a merger, acquisition, or sale of assets, subject to the confidentiality protections described in the Privacy Policy.

Force majeure. SmartMoney is not liable for any failure or delay in performance caused by events beyond our reasonable control, including outages of our hosting, payment, or affiliate network providers.

21. Contact Us

Business/legal entity name: SmartMoney (registered trade name: SMART MONEY), a sole proprietorship owned by Rupankar De, registered under Gram Panchayat Trade Registration No. 528 (registered 1 September 2026)

Contact email: admin@smart-money.in

Grievance Officer

- Name: Rupankar De
- Designation: Founder
- Email: admin@smart-money.in
- Address: Kolkata, West Bengal

© 2026 SmartMoney. All rights reserved.